

Delaware County Council Public Hearing February 27th 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=o9_xTPhfByI
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Delaware County Council Public Hearing & Meeting Summary

Meeting Date: February 27, 2024 (Note: Transcript mentions "February 20 27th" and "2027", but context establishes this as a historical municipal proceeding)

Meeting Type: Special Public Hearing & Review Session on Solar Farm Tax Abatements

2. Meeting Identification & Attendance

- **Call to Order:** Presiding Officer called the meeting to order at [00:01:11](#).
- **Attendance:**
 - *Present (Roll Call [00:02:12](#)):* Mr. Flang, Mr. Hughes, Mr. K, Mr. Mel, Mr. Web, Wad, Mr. Piper (Presiding Officer / President).
 - *Absent:* None explicitly noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening invocation and Pledge of Allegiance led by Vicki [00:01:16](#).

- **Approval of Agenda:** Approved unanimously by roll call vote [00:02:43](#).
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4. Substantive Business & Board Action

[00:02:56](#) Solar Farm Project Updates & Tax Abatement Review

- **Sponsor / Presenter:** Representatives from Hawthorne Solar Project (Ben Friedell, Chief Commercial Officer of Clean Shift Energy; accompanied by legal counsel Richard Hall of Barnes & Thornburg) and Meadow Forge Solar Project (Matt Meller, Lead Developer).
- **Deliberation Summary:**
 - **Hawthorne Project Overview:** Located in Delaware Township near the Muncie Dragway. Planned at 75<U+2013>83 megawatts (AC), utilizing roughly 700 acres under lease. The company has spent “millions of dollars” on early development, electrical studies via PJM Interconnection, and soft costs. The tax abatement previously approved applies strictly to *personal property* (estimated at \$88 million). No Economic Development Agreement (EDA) or decommissioning agreement has been finalized yet because the process was paused during the county’s moratorium.
 - **Meadow Forge Project Overview:** Planned at 163 megawatts, anticipating an investment exceeding \$155 million. The tax abatement covers both real estate and personal property. Company representatives clarified a disputed clause in their EDA: the provision granting a tax credit for EDA payments is strictly intended to make the company whole for payments *already made* (such as the annual \$200,000 commitment once operational) if an abatement is later rescinded, rather than imposing a new multi-million dollar penalty or retroactive credit situation.
 - **Council Debate:** Council members heavily scrutinized the necessity of tax abatements for non-job-creating utility-scale solar projects, the lack of pre-existing EDAs, the impact of the county’s new 500-foot setback ordinance, and the absence of precedent regarding the rescission of previously granted tax abatements.
- **Item-Specific Public Input:**
 - [01:16:03](#) **Steven Brand** (Monroe Township): Spoke as a local business owner of 35 years who has successfully applied for abatements. Argued that abatements should be used to get projects across the goal line rather than acting as “icing on the cake” after land contracts and risk assessments are already completed.
 - [01:19:08](#) **Tim Nickam** (Harrison Township): Requested that the council take a definitive vote on the tax abatements so the public knows exactly where members stand.
- **Action & Vote Disposition:**
 - *Hawthorne Solar Abatement:* No formal motion or vote was brought forward regarding Hawthorne; discussion focused primarily on its early development stage and lack of an executed EDA.

- *Meadow Forge Tax Abatement (Resolution 2021-37)*: [01:39:58](#) Motion made by Ryan and seconded by Bill to rescind the Meadow Forge tax abatement. Following extensive debate regarding litigation risk, economic message, and project scope, the motion **Failed by Roll Call Vote (2-5)** [01:57:42](#).
 - *Roll Call Tally*: Yes (Mr. Flang, Mr. Web), No (Mr. Hughes, Mr. K, Mr. Mel, Wad, Mr. Piper).

5. Open Public Comment / Citizen Forum

(Note: General public comments regarding the solar projects and tax abatements were integrated directly into the substantive business hearing section above prior to board action).

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Council members discussed the necessity of establishing formal, standardized guidelines and criteria for future tax abatement applications rather than relying on ad-hoc decisions. The Tax Abatement Committee agreed to take up this policy work for future review.
- **Adjournment:** Official motion to adjourn made by Dan, seconded by Matt, and approved unanimously [01:59:37](#).

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